Who Owns the Research? Intellectual Property at the University of Windsor

Introduction

When a graduate student creates a research product under a professor's supervision, who owns it? The answer depends on the University of Windsor's intellectual property (IP) policy, what each person contributed, and any agreements involved. The University's Policy on Student-Created Intellectual Property sets out rules for deciding ownership and separates student research, work done as an employee, and IP created jointly (University of Windsor, 2025).

The Student's Side

The student has a strong case for ownership if they came up with the invention on their own as part of their studies, not as part of a job. Under the University's policy, students usually own what they create in these situations unless another agreement says otherwise. The fact that the student did most of the work helps their case, especially if research records show their contribution. Still, the student should check whether funding rules or signed agreements affect ownership.

The Faculty Member's Side

The professor might argue that the original idea, technical advice, or intellectual input helped lead to the invention. But suggesting a topic or supervising a student does not automatically make the professor an owner. If the professor truly contributed to creating the IP, joint ownership may make sense under the University's policy. Evidence of what each person contributed, plus any relevant agreements, would matter in settling the dispute (University of Windsor, 2025).

The University's Side

The University might argue that its labs, equipment, funding, or research support helped produce the invention. However, using university space does not automatically make the University the owner. Things may be different if the student created the invention while doing university job duties or under a sponsored research agreement with specific ownership terms. Canadian copyright law also separates normal authorship from work done as an employee (Copyright Act, 1985, s. 13).

Possible Outcomes and Conclusion

There are three possible results. First, the student may own the product if they created it independently during their studies with no agreement handing over ownership. Second, the student and professor may shar e ownership if both made real inventive contributions. Third, the University or another party may hold certain rights if job duties or contract terms apply.

My Conclusion

In my view, the student has the strongest initial claim in this case because they did the work and no outside partner or ownership agreement is mentioned. The final answer should depend on the University's policy, the student's employment status, documented contributions, and any agreements. Before commercializing, the parties should talk to the University's research and innovation office to confirm ownership and licensing rights. This protects the student's work while respecting the legitimate rights of the professor or University.

References

Copyright Act, R.S.C. 1985, c. C-42, s. 13. Copyright Act

University of Windsor. (2025). Policy on student-created intellectual property. apc251127p_-_combined_november_27_2025_apc_package.pdf

University of Windsor. (n.d.). University of Windsor commercialization framework. University of Windsor Commercialization Framework | Research Partnerships

University of Windsor. (n.d.). Research policies. Research Policies | Research and Innovation